

**JUSTIFICATION & APPROVAL FOR OTHER THAN FULL AND OPEN COMPETITION
for SIMPLIFIED ACQUISITIONS OVER THE MICROPURCHASE THRESHOLD (See FAR Part 2)
UP TO SAT
(See FAR 13.106-1)**

Date: 3/31/2025

PR Number: 0044014151

1. Identification of the Agency and the Contracting Activity:

National Park Service, Contracting Operations - Central, Santa Fe MABO

2. Nature and/or description of the item/service being procured and its intended use (include the anticipated cost)

This requirement is for an Emergency Replacement of the Pump & Motor at Well #1 in Rio Grande Village, which includes the removal of existing well pump and motor, inspection and replacement of up to fifty feet of piping, procurement and instillation of a new well pump and motor. When all services have been concluded, the expectation is that the new pump and motor shall restore water services to the same elements including the fire suppression system(s) that the existing pump and motor being replaced supplied. [REDACTED]
[REDACTED]

3. Sole Source Justification rationale (Check one and explain below):

☐ Only one responsible source IAW FAR 6.302-1.

☒ Unusual and Compelling Urgency exists IAW FAR 6.302-2.

☐ Other _____

4. Explain:

This requirement was made known on 3/24/2025 and indicated that a pump for the water well in Rio Grande Village referred as Well #1, stopped pumping, which presents an emergency need to restore potable water in Rio Grande Village. The critical period of performance for this urgent requirement is 20-calendar days After Receipt of Award. The well pump and motor that stopped working, supplies potable water to areas of Rio Grande Village, and not meeting the period of performance creates conditions that would result in serious injury to park staff and visitors due to not having access to potable water for hydration and sanitation. Additionally, well pump #1 in Rio Grande Village supplies water to critical fire suppression systems designed to protect life and government property from harm in the event of a fire. The financial loss to the government in the event of a fire is an unacceptable risk. Staff and constituents not having access to potable water coupled with fire suppression systems not having a reliable water supply, presents a significant risk to life, health, safety, and financially puts the government at substantial risk. Considering the vastness of Big Ben National Park, there is no way for park staff to effectively nor financially transport water in adequate quantities needed to remove the risk that can be satiated by an emergency removal and replacement of the pump and motor in well #1, therefore, Big Bend National Park must seek relief from this emergency situation under the authority of

FAR 6.302-2(a)(1) as applied under (6.302-2(b)). The government requires the use of the aforementioned authority and application to effectively remediate the potential for serious injury and financial harm and that an unusual and compelling urgency precludes full and open completion in this case.

5. **Market Research:** Market Research for this action was conducted appropriate to the circumstances. Two contractors were identified in the effort. One contractor is approximately 7-hours and 23-minutes away from the park whereas the other is approximately 1-hour and 43-minutes away from the park. Considering the situation is an emergency, and the response time to the park as aforementioned, it is in the best interest of the government to obtain the emergency services from the contractor 1-hour and 43-minutes away from the park.
6. **If this is a determination for sole source, the contracting officer certifies:**
 - a. Unusual and Compelling Urgency Exists.
 - b. The anticipated cost to the government will be determined fair and reasonable using the price analysis techniques in accordance with FAR 13.106-3(a).

LINDA
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Linda Weber
Contracting Officer's Representative

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Brian Dankmeyer
Contracting Officer